

Plaintiff has not alleged any viable claim based on an intentional tort. Code of Civil Procedure section 425.13 requires a plaintiff to obtain leave of court before asserting a claim for punitive damages in any action arising out of the professional negligence of a "health care provider." Without such an order, the punitive damages claim is subject to a motion to strike. (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 504-505.)

"The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code." (Code Civ. Proc., § 425.13, subd. (a).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	MOTIONS TO STRIKE

Tentative Ruling: GRANTED, see above.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600179	HIGHTOWER VS AUSTIN	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: GRANTED.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2105307	WALKER VS FCA US, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: DENY as untimely; no good cause is shown.

Plaintiffs Nathan Walker and Christine Walker filed this Song-Beverly action on 6/22/21 regarding their purchase of a 2017 Chrysler Pacifica on 9/13/16 with defects related to its electrical system, transmission, engine, stalling, and collision warning system, among others. The operative Second Amended Complaint, filed 6/16/23, against Defendants FCA US LLC and Hemet Chrysler Dodge Jeep Ram, asserts: (1) Civil Code section 1793.2(d); (2) Civil Code section 1793.2(b); (3) Civil Code section 1793.2(a)(3); (4) express warranty; and (5) implied warranty. The parties exchanged only written discoveries; no deposition was taken and no discovery motion was filed. Defendant offered \$172,500 to settle before trial, which Plaintiffs accepted on 6/6/23.

On 6/13/24, the parties filed a joint stipulation to dismiss. The court entered dismissal on the same day.